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PART I : SECTION (I) — GENERAL

Government Notifications

L. D. B. 63/51(II).

SRI LANKA RAILWAY UNIFORM STAFF BENEVOLENT FUND ORDINANCE

RULES made by the Corporation known as the Sri Lanka Railway Uniform Staff Benevolent Fund, under Section 16 of the Railway Uniform Staff Benevolent Fund Ordinance (Chapter 284) and confirmed by the Minister of Finance by virtue of the powers vested in him by the aforesaid section.

*Acting Secretary,
Ministry of Finance.*

Colombo,
30th January 2016.

RULES

The rules published in *Gazette Extraordinary* No. 305 of July 06th, 1984, as amended from time to time, and last amended by *Gazette Extraordinary* No.1833/26 of October 24, 2013 are hereby further amended as follows :-

1. In paragraph (1) of rule 5, by the substitution for the words “Rupees Hundred” of the words, “Rupees Five Hundred”.

2. In rule 15-

(a) by the substitution, in subparagraph (a) of paragraph (1), for the words and figures “Rupees Twenty Thousand (Rs.20,000/-)” of the words and figures, “Rupees Thirty Thousand (Rs. 30,000/-)” ; and

(b) by the substitution, in subparagraph (a) of paragraph (5), for the words “ten per centum” of the words, “six per centum”.



3. In paragraph (8) of rule 19, by the substitution for the words “ten per centum” of the words, “six per centum”.

4. By the repeal of rule 21 and the substitution therefor of the following new rule :-

“Festival Loans. 21. (1) (a) Any member who has completed a period of one year as a member and wishes to obtain a festival loan shall be entitled to such loan of Rupees Ten Thousand (Rs. 10,000/-) once a year. Where any member who has obtained the said festival loan shall settle such amount together with an interest at the rate of twenty per centum (20%) in ten monthly instalments of Rupees One Thousand and Two Hundred (Rs. 1,200/-).

(b) No member shall be entitled to obtain a festival loan, until any previous festival loan obtained by him if any, is fully settled by such member.

Relief Loan. 21. (2) (a) Any member who has completed one year as a member shall be entitled to a relief loan of such amount corresponding to the number of years of his membership as specified in the following schedule:-

Schedule

No.	Period of Membership (in years)	Amount of Loan (in Rupees)
1	01-10	3,500/-
2	over 10	5,000/-

(b) Any member who has completed a period of one year as a member but has not completed a period of ten years shall be entitled to a relief loan of Rupees Three Thousand Five Hundred (Rs.3,500/-). Any member who has completed more than ten years as a member shall be entitled to Rupees Five Thousand (Rs.5,000/-) as a relief loan.

(c) A relief loan granted under this rule shall be recovered with the interest at the rate of sixteen per centum (16%) there on in six monthly instalments or twelve monthly instalments as specified in the following schedule:-

Schedule

No.	Amount of Loan (in Rupees)	Six months (four instalments)	Interest (at the rate of 16%)	Twelve months (ten instalments)	Interest (at the rate of 16%)
1	3,500/-	875/-	70/-	350/-	56/-
2	5,000/-	1250/-	100/-	500/-	80/-

(d) No member shall be entitled to a relief loan until any previous relief loan obtained by him if any, is fully settled by such member.

21. (3) Any application for such loan shall be made to the Secretary and Treasurer of the Sri Lanka Railway Uniform Staff Benevolent Fund, in the application form provided by the Corporation office for such purpose and shall be accompanied by the member's Pass Book and a statement of the grounds on which the loan application is made.

21. (4) The acknowledgement form printed on the reverse of the application form shall also be perfected and signed on a valid stamp of stipulated value, together with the signatures of two witnesses. The office bearers of the Corporation who sign the cheques shall not be entitled to sign as a witness to any such loan application.

21. (5) A cheque for the amount of the loan applied for or the amount payable along with the Pass Book in which details of debits and credits are entered shall be sent to the member within three days on receipt of a duly perfected loan application and receipt.

21. (6) The member shall on receipt of the cheque and the Pass Book, check entries therein and if any incorrect entries are discovered, shall promptly inform the same to the Secretary and the Treasurer in writing and shall get such incorrect entry rectified. It is completely prohibited for the member to make any entries or alter any entries already made therein in any manner, and the Committee of Management shall have the power to stop, suspend or expel such member from the membership or to report it to the Department for disciplinary action, if detected.”.

5. By the repeal of rule 22 and the substitution therefor, of the following new rule -

“Special
Loans. 22. (1) Any member who has completed a period of one year of membership shall be entitled to a special loan of such amount corresponding to the period of his membership as specified in the following schedule:-

Schedule

No.	Period of Membership (in years)	Amount of Loan (in Rupees)
1	01 - 03	10,000/-
2	03 - 05	20,000/-
3	05 - 10	30,000/-
4	10 - 15	40,000/-
5	15 - 20	60,000/-
6	over 20	80,000/-

22. (2) Any member applying for a special loan under this rule shall-

- (a) not be more than fifty seven years of age;
- (b) make the application in a special form which shall be obtained ,from the Corporation Office;
- (c) provide all the details required in the application form;
- (d) handover the duly perfected application to the Secretary and the Treasure of the Corporation.

22. (3) Any member who is not eligible to obtain a loan under subparagraph (a) of paragraph (2) of rule 22, may subject to the written approval of the Committee of Management, be granted a special loan of Rupees Forty Thousand (Rs.40,000/-) to be settled at the date of his retirement. The decision of the Committee of Management in this regard shall be final and conclusive.

22. (4) Every member shall duly perfect the surety bond attached to the application to obtain a special loan and shall undertake to settle such loan duly in instalments as specified in the surety bond. Where any member defaults the payment of loan instalments, the Corporation shall have the power under this rule to recover such instalments by deducting from the salary of such member, a sum of rupees equivalent to the instalment so defaulted together with the interest thereon.

22. (5) Where the membership of any member is suspended under subparagraph (a) of paragraph (2) of rule 8, such member shall affix his signature on the surety bond and give his consent to set off the outstanding amount of the special loan against his deposits, gratuity or any other entitlement, within three consecutive months from the date of such suspension.

22. (6) The Secretary and the Treasure shall upon receipt of an application for a special loan under this rule, date-stamp such application before the applicant and issue the applicant a receipt with a serial number on it.

22. (7) The Corporation shall pay the loan under this rule to any member in the order of the serial number of the application and on availability of funds.

22. (8) A special loan granted to any member under this rule shall be paid in 6, 12, 18, 24 or 36 months by way of instalments in the manner as specified in the following Schedule. Such member shall not be entitled to another loan under this rule until the loan obtained by him under this rule has been fully settled.

Schedule

No.	Amount of Loan	In six months (4 instalment)	Interest (at the rate of 16%)	In twelve months (10 instalment)	Interest (at the rate of 16%)	In Eighteen Months (16 Instalment)	Interest (at the rate of 16%)	In Twenty four Months (22 Instalment)	Interest (at the rate of 16%)	In Thirty Six Months (34 Instalment)	Interest (at the rate of 16%)
1	10,000/-	2,500/-	200/-	1000/-	160/-	625/-	150/-	$\frac{550 \times 1}{450 \times 21}$	145/-		
2	20,000/-	5,000/-	400/-	2,000/-	320/-	1,250/-	300/-	$\frac{1100 \times 1}{900 \times 21}$	291/-	$\frac{530 \times 1}{590 \times 33}$	282/-
3	30,000/-	7,500/-	600/-	3,000/-	480/-	1,875/-	450/-	$\frac{1335 \times 1}{1365 \times 21}$	436/-	$\frac{960 \times 1}{880 \times 33}$	423/-
4	40,000/-	10,000/-	800/-	4,000/-	640/-	2,500/-	600/-	$\frac{1780 \times 1}{1820 \times 21}$	581/-	$\frac{1060 \times 1}{1180 \times 33}$	564/-
5	60,000/-	15,000/-	1200/-	6,000/-	960/-	3,750/-	900/-	$\frac{2670 \times 1}{2730 \times 21}$	872/-	$\frac{1755 \times 1}{1765 \times 33}$	847/-
6	80,000/-	20,000/-	1600/-	8,000/-	1280/-	5,000/-	1200/-	$\frac{3665 \times 1}{3635 \times 21}$	1163/-	$\frac{2450 \times 1}{2350 \times 33}$	1129/-

6. By the repeal of rule 23 and the substitution therefor of the following new rule :-

“Recovery of Special Loans. 23. (1) The number of instalments in which the special loan granted under this rule shall be settled shall not exceed the number of instalments specified in the Schedule to paragraph (5) of rule 22:

Provided that, where an application made by any member indicating his willingness to settle the loan in full prior to the period as agreed by such member as per the Schedule to paragraph (5) of rule 22, the Secretary together with the Treasurer may reduce the number of instalments, so however,

in no event, the number of instalments shall be increased. Where a member fails to pay any loan instalment, three *per centum* (3%) of interest shall be levied as a penalty on the remaining instalments.

Arrears 23. (2) (a) In the event of any arrears due to the Consolidated Fund from a member whether in employment in the Railway Department or any other Government Department or Statutory Board or dismissed therefrom, the Head of the Department or the Corporation concerned shall be empowered in terms of this rule to recover all such arrears from any monies due to the member from the Heads of the Department or the Corporation concerned once a request in writing is made by the Secretary and the Treasurer of the Consolidated Fund in terms of paragraphs (1) and (2) of rule 6 ;

(b) If there is no money lying to the credit of such a member in the said Department or Corporation, the Corporation shall have the power to recover the amount by legal process.”.

7. In Rule 25, by the substitution for the words and figures “not exceeding Two Thousand Five Hundred Rupees (Rs.2,500/-)”, of the words and figures “not exceeding Five Thousand Rupees (Rs.5,000/-)”.

8. By the substitution in paragraph (b) of rule 26, for the words and figures, “*ten per centum* (10%)” of the words and figures “*six per centum* (6%)”.

9. In rule 33. by the addition of new paragraph (11) immediately after paragraph (10) :

“33.(11) The members of the Committee of Management shall be entitled to obtain a distress loan of Ten Thousand Rupees (Rs. 10,000/-) which shall be settled by such members in ten monthly instalments of One Thousand and Two Hundred Rupees (Rs. 1200/-) together with the interest thereon at the rate of *twenty per centum* (20%). Where any member of the Committee of Management defaults the payment of loan installments, the Corporation shall have the power to recover such instalments by deducting from the salary of such member, a sum of rupees equivalent to the instalment so defaulted together with the interest thereon.”.

10. In rule 39 by the substitution for paragraph (1) thereof, of the following :-

Bonus of the President and Travelling Expenses of the Committee. 39. (1) In addition to the travelling expenses of the Committee, only the President of the Corporation shall be entitled to receive a bonus of *twenty five per centum* (25%) of his basic salary per month during the term of his office as the President after obtaining the approval therefor at the annual general meeting. However the amount of such bonus shall not exceed Rupees Five Thousand (Rs. 5,000/-) and he shall not be entitled to any other allowance other than this allowance.”

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